

Warsaw, on the 1st
of March
2023

Decision

DKE.523.24.2021

Based on Article 138 § 1 point 2) in conjunction with Article 105 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (consolidated text: Journal of Laws of 2022, item 2000), Article 160 paragraphs 1 and 2 of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781) in connection with Article 12 point 2 and Article 22 of the Act of August 29, 1997, on the protection of personal data (Journal of Laws of 2016, item 922 as amended), after re-conducting the administrative proceedings regarding the complaint of Mr. A. P., residing in W. at ul. (...), concerning the processing of his personal data by G. sp. z o.o. based in W. at ul. (...) and Go. based in M., the President of the Personal Data Protection Office

I. repeals in its entirety the decision of the General Inspector for Personal Data Protection of June 9, 2016, reference DOLiS/DEC-479/16/51796,51805

II. terminates the proceedings in its entirety as moot

JUSTIFICATION

Factual Background

A complaint was submitted to the General Inspector for Personal Data Protection (currently: the President of the Personal Data Protection Office, hereinafter "the President of UODO") by Mr. A. P. (registered address: ul. (...) W.) against G. sp. z o.o. based in W. at ul. (...) (hereinafter: "G.") and Go. based in M. (hereinafter: "Go") regarding the refusal to remove 19 URLs from the search results of the G. search engine (...), returned after searching for the phrase (...), leading to websites containing unfavorable information about the Complainant. The URLs indicated in the complaint are presented in the table below:

1
(...)
2
(...)
3
(...)
4
(...)
5
(...)
6
(...)
7
(...)
8
(...)
9
(...)
10
(...)
11
(...)
12

(...)
13
(...)
14
(...)
15
(...)
16
(...)
17
(...)
18
(...)
19
(...)

By the decision of June 9, 2016, reference DOLiS/DEC-479/16/51796,51805, the General Inspector for Personal Data Protection ordered G. to remove the personal data of the Complainant from the search results of G. (...) concerning the addresses indicated above in points 1 to 14 and from 16 to 17, and terminated the proceedings regarding the addresses indicated in points 15 and 19 – stating that the proceedings concerning these addresses were moot, as no personal data of the Complainant had been published under the indicated addresses.

By letter dated June 27, 2016 (received on June 30, 2016), G. submitted a request for reconsideration of the case, the annulment of the contested decision in its entirety, and the termination of the proceedings in its entirety due to the decision being directed to a person who is not a party to the case. In the content of the request, G. stated that it is not the administrator of the personal data processed in the search results of G. (...), but that the administrator of this data is the Company Go. based in M. (hereinafter: Go.).

During the reconsideration of the case, the President of UODO summoned Go. to provide explanations regarding the matter. In letters dated October 14, 2022, and January 30, 2023, the representative of Go. indicated that none of the addresses covered by the complaint are still displayed in the search results of G. (...) after entering the phrase corresponding to the name and surname of the Complainant, i.e., after entering the phrase (...), therefore Go. no longer processes the personal data of the Complainant in the subject matter.

The Company Go. reanalyzed the Complainant's request to remove the URLs from the search results of the G. search engine by the name and surname of the Complainant and subsequently removed these addresses from the search results, due to the fact that a significant amount of time has passed since the events described on the disputed websites.

In the opinion of the President of UODO, the explanations provided by Go., as mentioned in point 4 above, are truthful, i.e., Go. no longer processes the personal data of the Complainant in the scope covered by the complaint in the presentation of search results leading to the websites indicated in the table in point 1 of the justification of the decision. Currently, the search results in the G. search engine, when using the name and surname of the Complainant, do not contain URLs leading to the disputed websites indicated in the table in point 1 of the justification.

In this factual situation, the President of UODO considered the following.

Legal Justification

As of May 25, 2018, the provisions of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781) came into force. According to Article 160 paragraphs 1-3 of this Act, proceedings conducted by the General Inspector for Personal Data Protection, initiated and not concluded before the entry into force of this Act, are conducted by the President of the Personal Data

Protection Office based on the Act of August 29, 1997, on the protection of personal data (Journal of Laws of 2016, item 922 as amended), in accordance with the principles specified in the Act of June 14, 1960, the Code of Administrative Procedure (consolidated text: Journal of Laws of 2022, item 2000), hereinafter referred to as "k.p.a.". At the same time, actions taken in proceedings initiated and not concluded before the entry into force of the provisions of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781), remain effective.

The President of the Personal Data Protection Office, when issuing an administrative decision, is obliged to resolve based on the factual state existing at the time of issuing this decision. As indicated in the case law: "Administrative authorities decide based on the factual and legal state existing at the date of issuing their decisions. This obligation also applies to the second-instance authority, which follows from the principle of two-instance administrative proceedings. According to this principle, the second-instance authority is obliged to take into account the current factual and legal state existing at the date of issuing the second-instance decision. Failure to fulfill this obligation is associated with a violation of the principle of objective truth (Article 7 and Article 77 § 1 of the Administrative Procedure Code)" (Judgment of the Voivodeship Administrative Court in Kraków of April 16, 2010, case no. II SA/Kr 541/09). Furthermore, the Supreme Administrative Court stated: "when examining the legality of the processing of personal data, the GODO is obliged to determine whether, as of the date of issuing the decision in the matter, the data of a specific entity is being processed and whether this is done in a lawful manner" (Judgment of the NSA of May 7, 2008, case no. I OSK 761/07).

According to Article 105 § 1 of the Administrative Procedure Code, when the proceedings have become moot in whole or in part for any reason, the public administration authority issues a decision to discontinue the proceedings accordingly in whole or in part. According to Article 138 § 1 point 2) of the Administrative Procedure Code, the appellate authority issues a decision that either overturns the contested decision in whole or in part and, in this respect, rules on the merits of the case or, by overturning this decision, discontinues the first-instance proceedings in whole or in part.

Relating the above provisions to the established factual state, it should be noted that the decisive factor for the resolution in this matter is the circumstance that the URLs whose removal was requested by the Complainant have been removed and are no longer displayed in the G. search engine. (...) The Complainant's request has therefore been satisfied during the course of this administrative proceeding. Thus, this administrative proceeding has become moot.

Article 105 § 1 of the Administrative Procedure Code leaves no doubt that in the event of establishing the mootness of the proceedings, the authority conducting these proceedings is obliged to discontinue them. The Supreme Administrative Court has repeatedly indicated that the mootness of administrative proceedings, as stated in Article 105 § 1 of the Administrative Procedure Code, means that one of the elements of the material legal relationship is missing, and therefore it is not possible to issue a decision resolving the matter by ruling on its merits (Judgment of the NSA of December 1, 2009, II GSK 236/09, LEX no. 582827, Judgment of the NSA of October 16, 2019, II OSK 2526/18, LEX no. 2866336). The Supreme Administrative Court also ruled that in a situation where factual circumstances making the proceedings moot (Article 105 § 1 of the Administrative Procedure Code) arise only at the stage of appellate proceedings, the appellate authority issues the decision provided for in the second sentence of Article 138 § 1 point 2 of the Administrative Procedure Code (Judgment of the NSA in Gdańsk of August 8, 1997, I SA/Gd 514/96, POP 1999, no. 4, item 102).

In this factual and legal state, the President of the Personal Data Protection Office ruled as stated in the operative part.

The decision is final. The party has the right to file a complaint against the decision to the Voivodeship Administrative Court in Warsaw within 30 days from the date of its delivery to the party. The complaint is submitted through the President of the Personal Data Protection Office (address: ul. Stawki 2, 00-193 Warsaw). The fee for the complaint is 200 zlotys. The party has the right to apply for legal aid, including exemption from court fees.

[Print article](#)

Metadata

Entity providing the information: Department of Penalties and Enforcement

Information created by: Jan Nowak

2023-03-01

Information entered by: Mathias Proch

2023-10-12 11:06:14

Last modified by: Edyta Madziar

2023-10-24 10:43:42